



File No.: EXP202412122

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 3, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 3, 2024, a complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant) against SIDEUCU, S.A. (hereinafter, the respondent) for not having duly addressed the right to erasure.

The complainant submitted a request for the erasure of their data on June 20, 2024, at one of the sports centers managed by the respondent, without having received a response to their request once the period established by data protection regulations had elapsed.

Attached: Copy of the exercise of the right to erasure dated June 20, 2024, submitted in person along with a "Suggestions and Complaints Form," with receipt signed by SIDEUCU S.A.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent submitted a response to this Agency on October 14, 2024, indicating that, after receiving the complainant's request at ***CENTER.1, one of its sports centers, "(...) it was attended to by the person in charge of the referred center, (...) and he took care of processing the erasure immediately."

Therefore, addressing the request made by A.A.A., the Center proceeded to immediately erase the biometric personal data of the requester that was in SIDEUCU's database - which was used to grant access to the Sports Center through a facial recognition system for subscribers - and which was associated with their user, who was present when this was carried out.

Furthermore, A.A.A. was informed that, after the erasure of the biometric personal data associated with their user, such data no longer existed in SIDEUCU's database.

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However, after this, both A.A.A. and B.B.B. carried out a series of checks to verify whether the biometric personal data of the user had indeed been deleted from the SIDEUCU system, and both were able to confirm that the erasure had been carried out correctly, as the reader denied their access to the Center through facial recognition.

In any case, SIDEUCU proceeded to erase the data requested by the user in accordance with the provisions of Article 15 of Organic Law 3/2018, (...) and Article 17 of Regulation 2016/679/EU.

Thus, currently, there is no biometric data belonging to user C.C.C. in SIDEUCU's database, as it had been erased previously; a fact that was also verified by the user themselves, who was present and expressed their agreement with such erasure, which is why no written response was sent to that request by SIDEUCU."

The respondent indicates that, despite the complainant being aware of this circumstance, they have submitted a complaint to the Agency for not having received a written response.

The respondent adds that "(...) Notwithstanding the above, the rest of the personal data belonging to A.A.A. that is in SIDEUCU's database cannot be erased since the user is a subscriber of ***CENTER.1, as of today's date."

Documentation provided:

- Doc. 1: Copy of the Suggestions and Complaints Form submitted by the complainant (already provided by them along with the complaint), dated 06/20/2024 and signed by both parties, along with the exercise of the right to erasure.
- Doc. 2:
 - o Registration Form at ***CENTER.1 containing the complainant's data, signed and dated 05/19/2021.

o Form from the same sports center for "Change of Fee," signed and dated 10/11/2023.

THIRD: After examining the response from the complainant, on October 24, 2024, a request for information was sent to them, as there were certain aspects that needed clarification.

For this reason, a deadline was granted for them to supplement the documentation initially submitted: A response has been received to the transfer procedure, but the response to the right to erasure is incomplete. Therefore, it is requested to provide evidence of the response given to the complainant after the transfer, as the complaint was filed for not having received the regulatory response. All of this, in accordance with Article 12.4 of the LOPDGDD. (...)

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FOURTH: On November 7, 2024, the response submitted by the claimant was received by this Agency, in which it is stated, in summary, that as previously indicated in the allegations presented to this Agency, "(...) all data related to the image and access by the facial recognition reader was deleted on-site, except for those data necessary for the contractual relationship, which the user can verify were deleted, as the facial recognition access system no longer allows them to access through that means. Consequently, there is currently no biometric data belonging to the user C.C.C. in the SIDEUCU database, as it was deleted at that time; a fact that was also verified by the user themselves, who was present and agreed to such deletion, which is why SIDEUCU did not send a written response to that request."

FIFTH: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the claimant. Consequently, on November 3, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection decided to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present the allegations they deemed appropriate within ten working days.

The respondent, in their written submission to this Agency dated December 9, 2024, reiterates what was previously stated regarding the fact that they proceeded to delete the biometric data of the claimant in their presence, which is why they did not respond in writing to the deletion request submitted. The respondent provides a screenshot of the user control software where the last recorded access attempt is noted as of June 21, 2024. The respondent continues to indicate that "(...) without prejudice to the above, we have recently sent a communication to the user, conveying this misunderstanding and informing them again that since the day they exercised their right in person at the SIDEUCU facilities, their personal data has been deleted."

They provide:

- Doc. 1: "Suggestions and Complaints Sheet," previously submitted.
- Doc. 2: Screenshot of the application where the claimant's data and the dates of "access installation" are recorded.
- Doc. 3: Written communication from the respondent dated November 27, 2024, addressed to the claimant, in which they indicate that "(...) we deeply regret the existing misunderstanding, as we believed that having attended to the right exercised directly and personally that day in front of you, it was not necessary to also convey the response in writing. All of this, moreover, considering that you yourself verified such deletion and the impossibility of accessing through the facial recognition system as any data related to your image has been deleted.

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In any case, we reiterate for your peace of mind that since that same day, June 20, 2024, the data

related to the image and access by the recognition reader has been deleted, retaining our entity only the following personal data necessary for the execution of the existing contractual relationship as a subscriber of our center:

- Name and surname
- Gender
- ID number
- Date of birth
- Address
- Email address and phone numbers, landline and mobile
- Banking data necessary for the collection of receipts.”
- Email dated December 4, 2024, from the respondent to the claimant indicating that they attach a communication related to the complaint submitted to the Agency.
- Copy of a postal service form for "National Shipment" sent by the respondent dated December 4, 2024, to the claimant.
- Doc. 4: Registration and Fee Change Form of the claimant, previously submitted.

SIXTH: After examining the written submission presented by the respondent, it is transferred to the claimant so that, within ten working days, they may formulate the allegations they deem appropriate. The claimant, on January 27, 2025, stated that, contrary to what the respondent indicated, they were not informed of the ways to submit requests for the exercise of rights in data protection matters. They indicate that “(...) on page 9 of annex 2, D.D.D. says that ‘Resolved and responded in person.’ In the complaint sheet that I have and that I submitted on June 20, 2024, what D.D.D. says does not appear; they must have added it later. What I told them was that I wanted them to delete the biometric data they had taken from me, their response was that ‘that was all.’”

The claimant states, in summary, and as far as this procedure is concerned, that when the biometric data system was installed, they accessed it, but were not informed nor was their consent requested. Therefore, they exercised their right to delete such biometric data. They express their disagreement with the manner of access to the sports facilities without biometric data.

They provide:

- Copy of the “Suggestions and Complaints Sheet.”
- “List of signatures of members of ***CENTRO.1, who underwent the biometric data collection process, and who declare that it was done without information or authorization, as stated in the guide of the Data Protection Agency, they were only told that it replaced the card,” which includes the names and surnames, ID numbers, membership numbers, and signatures of 10 people.

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SEVENTH: After granting a hearing to the respondent party, on February 21, 2025, the respondent party stated that “This procedure originates from the complaint filed on August 3, 2024, by the user before the AEPD, in which it is stated that, on June 20, 2024, A.A.A. submitted a request for data deletion without having received a response to their request once the period established in the data protection regulations had elapsed.”

It adds that “(...) the complainant himself acknowledges in the allegations he presented to the AEPD in January of this year that on the same day he filed the complaint, the person responsible for the sports center, D.D.D., carried out on-site and in front of the user the blocking of any data associated with his image so that the facial recognition system implemented no longer allowed him to access by that means.”

“(...) Indeed, and as we have already indicated, our entity did not proceed to respond in writing to said complaint because it was communicated from the sports center to the central offices of SIDEPU that the complaint had already been resolved for the user and responded to in person at the facilities of the sports center, with the user being satisfied and accessing from that moment with the mere presentation of his identity card.

For that reason, at the moment we were notified of the complaint, the person responsible for the center included in our internal sheet “resolved and responded in reception in person.”

“(…) In any case, and in light of the user's complaint, a personalized communication was sent to him on December 4, 2024, both by postal mail and by email, in order to convey our apologies for such misunderstanding, as we provided in our allegations document dated December 5, 2024 (document No. 4).

In this regard, we consider that the user's request was duly attended to by our entity on the same day, without prejudice to the fact that subsequently we sent him written communication clarifying the situation.”

Furthermore, the respondent party explains the alternative method of access to its facilities for personnel who do not access through their biometric data, as well as the risk analysis carried out by SIDEUCU prior to the implementation of the access system, and verification measures carried out by SIDEUCU.

The respondent party has submitted various documents related to the implementation of the access system through biometric data.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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The control authority, in accordance with the provisions of Articles 47, 48.1, and 64.1 of the LOPDGDD, is competent to resolve this procedure, which falls under the Presidency of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures on a subsidiary basis."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the control authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on November 3, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in

Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

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Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to address any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such a request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

“1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;

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c) the data subject opposes the processing pursuant to Article 21, paragraph 1, and no other legitimate grounds for the processing prevail, or the data subject opposes the processing pursuant to Article 21,

paragraph 2;

d) the personal data have been unlawfully processed;

e) the personal data must be erased to comply with a legal obligation established by Union or Member State law applicable to the data controller;

f) the personal data have been obtained in relation to the offering of information society services referred to in Article 8, paragraph 1.

2. When the personal data have been made public and the data controller is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of its application, shall take reasonable measures, including technical measures, to inform the controllers who are processing the personal data of the data subject's request for erasure of any link to such personal data, or any copy or replication of the same.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

a) for the exercise of the right to freedom of expression and information;

b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 would prevent or seriously impede the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In the case analyzed here, and taking into account the provisions of the first paragraph of this Legal Basis V, it has been established that the complaining party exercised their right to erasure. During the instruction of this file, the responding party indicated that it addressed the requested right in the presence of the complaining party, and therefore no written response was provided.

However, on December 4, 2024, it sent the complaining party an email attaching a document dated November 27, 2024, in which it indicates that it has erased the requested biometric data, and the C/ Jorge Juan, 6

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suppression of the remaining data as it is necessary for the contractual relationship between the parties.

The aforementioned regulations do not allow for the request to be disregarded as if it had not been made, leaving it without the response that the responsible parties must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the party being complained against has provided documentation proving the communication sent to the interested party regarding the right or informing about the decision made

regarding the request. This response, therefore, occurs after the established deadline has passed. In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present complaint on formal grounds due to the response being issued late, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the complaint filed by A.A.A. against SIDECU, S.A. However, it is not appropriate to issue a new certification by the party being complained against, as the response has been issued late, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to SIDECU, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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